

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALEXANDER DURAN infant by his father and natural guardian,
SEAN WONG SING and SEAN WONG SING, individually,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, SEARGENT UBAVIN (first name
unknown at this time) BADGE NO# 4717 of the 94th Precinct, in
his personal and official capacity, Police Officer "John Doe" of the
94th Precinct (name is not known at this time) in his personal and
official capacity,

Defendant (s),

-----X

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: August 26, 2020

Notice: The object of this action is to recover for personal injury
due to defendant(s) negligence
The relief sought is Monetary Damages

Upon your failure to appear, judgment will be taken against you by default with interest from 6/28/19 and the costs of this action.

DEFENDANT(S) ADDRESS(ES)

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

SERGANT UBAVIN
94th Precinct
100 Meserole Avenue
Brooklyn, NY 11222

SUMMONS AND COMPLAINT

Index No. _____
Plaintiff(s) designates
KINGS County
as the place of trial
The basis of venue is
PLAINTIFF resides at
295 Jackson Street, Apt#1A
Brooklyn, NY 11221
County of Kings

/s/ Alexander Roytblat
BY: ALEXANDER ROYTBAT, ESQ.
This SUMMONS AND COMPLAINT
and the papers on which it is based, are
certified pursuant to Section 130-1.1-a
of the rules of the Chief Administrator
(22NYCRR)
ROYTBAT LAW GROUP, PLLC
Attorney(s) for Plaintiff(s)
2663 Coney Island Avenue, 2nd Floor
Brooklyn, NY 11223
(718) 872-6374

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALEXANDER DURAN infant by his father and natural
guardian, SEAN WONG SING and SEAN WONG SING,
individually,

COMPLAINT

Index No.:

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, SERGEANT UBAVIN (first
name unknown at this) BADGE NO# 4717 of the 94th
Precinct, in his personal and official capacity, Police Officer
“John Doe” of the 94th Precinct (name is not known at this
time) in his personal and official capacity,

Defendants.

-----X

Plaintiff, complaining of the defendants, by his attorney, upon information and belief,
respectfully allege(s):

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ALEXANDER DURAN infant by his father and natural
guardian, SEAN WONG SING**

1. The defendant THE CITY OF NEW YORK is a duly constituted municipal corporation of the State of New York (herein after referred to as City) and is and was the employer of defendant Sergeant UBAVIN (first name unknown at this time).
2. That defendant THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as NYPD) was and is an agency of the CITY.
3. That defendant, Sergeant UBAVIN (hereinafter referred to as Ubavin), a sergeant employed by the CITY under the direction of the NYPD and the CITY at the 94th Precinct, and was acting in furtherance of the scope of his employment, acting under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or CITY, and acting in his individual and official capacity.

4. That defendant, Police Officer “John Doe”, a Police Officer employed by the CITY under the direction of the NYPD and the CITY at the 94th Precinct, and was acting in furtherance of the scope of his employment, acting under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or CITY, and acting in his individual and official capacity.

5. That at all the times herein mentioned, the defendant ALEXANDER DURAN, Infant was and is a resident of the County of Kings State of New York.

6. That at all the times herein mentioned, the defendant SEAN WONG SING, was and is a resident of the County of Kings State of New York.

7. During all times mentioned in this complaint the defendants were acting under color of law, to wit, under color of constitution, statutes, ordinances, laws, rules, regulations, policies, customs and usages of the State of New York and/or the CITY.

8. That notice of plaintiff's claim and notice of intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained was duly filed by the plaintiffs with the Corporation Counsel of the defendant CITY and with the Comptroller of the defendant NYC, with the Legal Department of the NEW YORK CITY POLICE DEPARTMENT, within 90 days after the cause of action herein accrued.

9. That 30 days have elapsed since filing Notice of Claim and that a hearing was not held.

10. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented for adjustment and that the Comptroller has neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that this action is commenced within one year after the cause of action accrued.

11. That on June 28, 2019, at approximately 6:45 PM, defendant, UBAVIN unjustifiably

verbally and physically abused plaintiff and did commit an assault and battery upon plaintiff, causing personal injuries, and bodily harm.

12. That on June 28, 2019, at approximately 6:45 PM, defendant, Police Officer “John Doe” unjustifiably verbally and physically abused plaintiff and did commit an assault and battery upon plaintiff, causing personal injuries, and bodily harm.

13. That the aforesaid acts of defendants were willful, intentional and unwarranted and without any just cause or provocation.

14. That at all times herein mentioned, and specifically on June 28, 2019, defendant UBAVIN, was on duty as Sergeant for defendants NYC and NYPD and acted under the color of the laws of the State of New York.

15. That at all times herein mentioned, and specifically on June 28, 2019, defendant Police Officer “John Doe”, was on duty as Police Report for defendants NYC and NYPD and acted under the color of the laws of the State of New York.

16. That at all the times herein mentioned, and specifically June 28, 2019, defendant UBAVIN was in uniform as Sergeant for defendants CITY and NYPD.

17. That at all the times herein mentioned, and specifically June 28, 2019, defendant Police Officer “John Doe” was in uniform as a Police Officer for defendants CITY and NYPD.

18. That at all the times herein mentioned, and specifically June 28, 2019, defendant UBAVIN, was acting within the scope of his employment as sergeant for defendant CITY and NYPD.

19. That the defendants CITY, NYPD, defendant UBAVIN, “John Doe” their agents, servants and/or employees were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm; in hiring and/or retaining in its employ personnel who are violent and/or possess violent propensities; who would assault and commit battery on law abiding

individuals; law enforcement personnel who make an arrest without reasonable cause; in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force and restraint against claimant; and in causing, allowing or permitting its personnel to improperly effectuate arrest, all in violation of statutes, ordinances and regulations.

20. That at all the times herein mentioned, the actions of the defendants CITY, NYPD and, defendant UBAVIN, Police Officer "John Doe" were negligent and not in accordance with proper procedures and regulations.

21. That the defendants UBAVIN and Police Officer "John Doe" his agents, servants and/or employees owed a duty of care to plaintiff, ALEXANDER DURAN not to negligently, carelessly abuse, assault and battery.

22. That the defendants UBAVIN and Police Officer "John Doe" owed a duty of care to plaintiff, ALEXANDER DURAN, breached said duty in negligently and carelessly subjecting to assault and battery and causing grievous personal injuries.

23. That said occurrence and the resulting prolonged personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

24. That by reason of the foregoing, the said plaintiff was caused to sustain prolonged serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which

would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

**AS AND FOR A FIRST CAUSE OF ACTION
(ASSAULT AND BATTERY)**

25. The plaintiff, ALEXANDER DURAN repeats and realleges each and every allegation in paragraphs numbered 1 through 25 of this complaint with the same force and effect as if fully set forth herein.

26. By their actions, as set forth above, the defendants UBAVIN and Police Report "John Doe" committed savage acts of assault and battery against ALEXANDER DURAN, which included physically harm said plaintiff and physically assaulting ALEANDER DURNAN. This use of physical force against ALEXANDER DURAN was unnecessary and excessive.

27. Defendants, CITY and NYPD is responsible for the threats and excessive and unnecessary physical force used by the UBAVIN and Police Officer "John Doe" because the misconduct occurred when they were acting within the scope of their employment, specifically in the course of physically harming ALEXANDER DURAN.

28. As a result of the aforementioned threats and the use of unnecessary and excessive force, ALEXANDER DURAN suffered the severe damages enumerated above.

29. By reason of the foregoing, plaintiff has been damaged in both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ALEXANDER DURAN infant by his father and natural guardian, SEAN WONG SING
(NEGLIGENCE)**

30. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 30 of this complaint with the same force and effect as though fully set forth herein.

31. That or about June 28, 2019, the defendants UBAVIN and Police Officer “John Doe” were negligent in causing and allowing and/or permitting his body or parts thereof as well as parts of inanimate objects to come in contact with the person of the plaintiff in such a manner as to cause severe personal injuries and serious and permanent bodily harm to the plaintiff.

32. By reason of the foregoing, plaintiff has been damaged in both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

**AS AND FOR AN THIRD CAUSE OF ACTION
(INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS)**

33. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 32 of the complaint as if fully set forth herein.

34. The aforementioned actions of defendant were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

35. Defendant acted with the desire and intent to cause plaintiff emotional distress or acted under circumstance known to them which made it substantially certain that they would cause such emotional distress.

36. Defendant acted with utter disregard of the consequences of their actions.

37. As a result, Plaintiff was caused to suffer the severe emotional distress.

38. By reason of the foregoing, plaintiff has been damaged in both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

**AS AND FOR A FOURTH CAUSE OF ACTION
(NEGLIGENT HIRING TRAINING, SUPERVISING, AND RETAINING)**

39. Plaintiffs repeat and reiterate the allegations contained in paragraphs 1 through 38 of the complaint as if fully set forth herein.

40. The actions of Defendants CITY, NYPD, through its agents, servants and/or employees, including defendants, UBAVIN and Police Officer "John Doe", heretofore described constitutes negligence in that defendants CITY and NYPD negligently trained or failed to train its agents, servants, or employees, especially including defendants UBAVIN and Police Officer "John Doe".

41. The actions of Defendants CITY, NYPD through its agents, servants, or employees, including defendants, UBAVIN and Police Officer "John Doe", heretofore described constitutes negligence in that defendants CITY and NYPD negligently supervised or failed to supervise its agents, servants, or employees, especially including defendants UBAVIN and Police Officer "John Doe".

42. The actions of Defendants CITY, NYPD through its agents, servants, or employees, including defendants, UBAVIN and Police Officer "John Doe", heretofore described constitutes negligence in that defendants CITY, NYPD currently unknown negligently disciplined or failed to discipline its agents, servants, or employees, especially including defendants UBAVIN and Police Report "John Doe".

43. Defendants CITY, NYPD were negligent in its hiring of its agents, servants and/or employees, especially including defendants UBAVIN and Police Officer "John Doe" who defendants CITY, NYPD currently unknown knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions.

44. Defendants CITY, NYPD were negligent in its retention of its agents, servants and/or employees, especially including defendants UBAVIN and Police Officer "John Doe", who defendants CITY, NYPD currently unknown, knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused

and abused their positions.

45. As a result of the negligence of defendants CITY, NYPD currently unknown and the acts of defendants, UBAVIN and Police Officer “John Doe” and other agents, servants and/or employees of defendants CITY and NYPD, without any negligence on the part of Plaintiff, Plaintiff was caused to suffer severe and permanent personal. injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation loss of freedom, and loss of wages, legal expenses, and damage to his reputation.

46. By reason of the foregoing, plaintiff has been damaged in both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ALEXANDER DURAN infant by his father and natural guardian, SEAN WONG SING
(PUNITIVE DAMAGES)**

47. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 46 of this complaint with the same force and effect as though fully set forth herein.

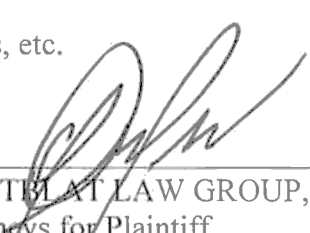
48. The acts of defendants CITY, NYPD, UBAVIN and Police Officer “John Doe” were willful, wanton, malicious and oppressive and were motivated solely by a desire to harm plaintiff without regard for plaintiff's well being and were based on a lack of concern and ill-will towards plaintiff. By reason of the foregoing, plaintiff has been damaged in both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

WHEREFORE, the plaintiff(s) demands judgment against the in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, together with the costs and disbursements of each cause of action.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
SEAN WONG SING**

That the plaintiff SEAN WONG SING is the father of plaintiff, resides with them and to whose services, aid and society he is entitled. As a result of the aforesaid, this plaintiff sustained damages for the loss of services, aid and society of his son in all to his damage in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

Yours, etc.



ROYTBLAT LAW GROUP, PLLC
Attorneys for Plaintiff
2663 Coney Island Avenue, 2nd Floor
Brooklyn, New York 11223

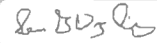
STATE OF NEW YORK)
) ss.
COUNTY OF KINGS)

The undersigned, affirms that the following statements are true under the penalties of perjury.

This SUMMONS AND COMPLAINT and the papers on which it is based, are certified pursuant to Section 130-1.1-a of the rules of the Chief Administrator (22NYCRR)

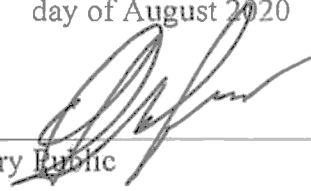
That deponent is the plaintiff in the within action; that deponent has read the foregoing SUMMONS AND COMPLAINT and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Personal knowledge and investigation in the file.


ID Y95dJvumb3bY4UpictwDhgPC

SEAN WONG SING

SWORN TO BEFORE ME THIS
day of August 2020


Notary Public

ALEXANDER ROYTBAT
Notary Public, State of New York
No. 02RO6171336
Qualified in Kings County
Commission Expires July 23, 2023

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALEXANDER DURAN infant by his father and natural guardian,
SEAN WONG SING and SEAN WONG SING, individually,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER UBAVIN BADGE NO# 4717 of the 94th
Precinct, in his personal and official capacity, Police Officer "John Doe" of the 94th Precinct
(name is not known at this time) in his personal and official capacity,

Defendant (s),
-----X

SUMMONS AND COMPLAINT

ROYTBLAT LAW GROUP, PLLC

Attorneys for Plaintiff

Office and Post Office Address, Telephone, Facsimile

2663 Coney Island Avenue | 2nd Floor

Brooklyn, NY 11223

TELEPHONE (718) 872-6374

FACSIMILE (866) 728-1118

"WE DO NOT ACCEPT SERVICE BY ELECTRONIC TRANSMISSION (FAX)"

Attorney(s) for

Service of a copy of the within

Dated;

is hereby admitted

.....
Attorney(s) for

PLEASE TAKE NOTICE



**NOTICE OF
ENTRY**

*That the within is a (certified) true copy of an ORDER entered in the office
of the clerk of the within named court on . 2020.*



**NOTICE OF
SETTLEMENT**

*That an Order of which the within is a true copy will be presented for
settle to the Hon. one of the judges of the within
named court,
at
on . 2020. at 10:00 a.m.*